

general proposition the conduct was despicable, [Cross-Appellant appeals] from the granting of the directed verdict motion. This cursory treatment requires no discussion by us."].)

The memorandum cites no legal authority for these assertions, including legal authority as to the elements of trespass stated in the memorandum. Nevertheless, the Bancrofts' opposition effectively concedes that this cause of action is dependent on the sufficiency of the quiet title causes of action, which the Court has found do not allege facts sufficient to state those causes of action. (Opp, p. 15, ll. 5-12 and Errata p. 15, ll. 5-12.) Both quiet title causes of action are legally deficient for failure to include the legal descriptions required. On this basis, the motion is **granted, with leave to amend**.

E. Waste (4th C/A)

Though the Kennys' motion states they are seeking judgment on the pleadings as to the fourth cause of action for waste, their memorandum in support of the motion makes no argument and cites no legal authority in support of their motion for judgment on the pleadings as to the waste cause of action. (*Lafferty, supra*, 213 Cal. App. 4th at 571-572; *Mattco Forge, supra*, 52 Cal. App. 4th at 850.) The opposition also does not address the waste cause of action, likely because the initial memorandum makes no argument regarding the waste cause of action.

The Kennys' reply for the first time argues the waste cause of action is dependent on the quiet title causes of action and fails because those causes of action are not pled with sufficient facts, citing two CACI instructions. The Court does not consider this argument raised for the first time in the reply, as the Bancrofts have not had the opportunity to oppose the arguments. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538 [points raised for the first time in a reply brief normally not considered].) In addition, CACI Instructions are not legal authority, such that the argument in the reply is not supported. (*Evans v. Hood Corp.* (2016) 5 Cal.App.5th 1022, 1049 ["[J]ury instructions, whether published or not, are not themselves the law, and are not authority to establish legal propositions or precedent. They should not be cited as authority for legal principles . . . ,"] quoting *People v. Morales* (2001) 25 Cal.4th 34, 48, fn. 7].)

The motion for judgment on the pleadings as to the fourth cause of action for waste is therefore **denied** on these procedural grounds.

3. 9:00 AM CASE NUMBER: C23-00841
CASE NAME: ANGELITO ALVIZ VS. VIRGILIO LEGARTE
HEARING ON DEMURRER TO: CROSS COMPLAINT OF LEGARTE
FILED BY: KOOKEN, CAROLYN
TENTATIVE RULING:

Before the Court is Cross-Defendant Carolyn Kooken ("Cross-Defendant" or "Kooken")'s Demurrer. The Demurrer relates to Cross-Complainant Virgilio Legarte ("Cross-Complainant" or "Legarte")'s Cross-Complaint for (1) aiding and abetting breach of fiduciary duty and (2) tort of another.

Cross-Defendant demurs to both Cross-Complainant's causes of action on the grounds that they fail to allege facts sufficient to state causes of action against Kooken.

For the following reasons, the Demurrer is **overruled**.

Request for Judicial Notice

Cross-Defendant requests judicial notice of the Complaint in this action, as well as a complaint filed in Capital Infusion Group, Inc. v. Macrobuild, Inc., et al., Los Angeles Superior Court Case No. 23VECV00143, and a Notification of Disassociation submitted to the Contractors State License Board. The unopposed request is **granted**. (Evid. Code §§ 452, 453.)

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Brief Factual Background

The Cross-Complaint alleges that the corporation Macrobuild was formed in 2017 by Defendant and Cross-Complainant Virgilio Legarte and Plaintiff Angelito Alviz (“Alviz”). Later, Plaintiff Jay Jay Alfonso (“Alfonso”) joined as a third shareholder. Cross-Complainant handled the billing, managed the books, ran payroll, and generated business through his contacts. (XC at ¶ 5,6.)

The Cross-Complaint further alleges that Legarte personally funded the business during times of cash flow shortfall. (XC at ¶ 7.) The Cross-Complaint alleges that Cross-Defendant Carolyn Kookan is the girlfriend of shareholder Alviz. (*Id.* at ¶ 8.)

Legarte alleges that in July 2022, influenced and encouraged by Kookan, the majority shareholders, Alviz and Alfonso, wrongfully expelled him from Macrobuild, removed his access to bank accounts, and diverted \$105,265.89 into an account he could not access. Despite expelling him, Alviz and Alfonso continued to use Legarte’s services without paying him. (XC at ¶¶ 9-10.)

The Cross-Complaint further alleges that Kookan encouraged the Alviz and Alfonso to mismanage Macrobuild, to compete with it through other entities controlled by Alviz, and to stop paying Merchant Cash Advances (“MCAs”) that Macrobuild had obtained from Capital Infusion, LLC, knowing that Legarte had personally guaranteed these advances. (XC at ¶¶ 11-12, 25-29.)

Analysis

(1) aiding and abetting breach of fiduciary duty

Cross-Defendant demurs to Cross-Complainant’s claim for aiding and abetting breach of fiduciary duty on the grounds that “it does not include an underlying tort, is impermissibly conclusory, fails to plead allegations with specificity based on the fraud-type tort being alleged, and fails to allege actual knowledge of tortious conduct.” (Demurrer at 4:22-25.)

“The elements of a claim for aiding and abetting a breach of fiduciary duty are: (1) a third party’s

breach of fiduciary duties owed to plaintiff; (2) defendant's actual knowledge of that breach of fiduciary duties; (3) substantial assistance or encouragement by defendant to the third party's breach; and (4) defendant's conduct was a substantial factor in causing harm to plaintiff." (*Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 343 [cleaned up].)

"There are two different theories pursuant to which a person may be liable for aiding and abetting a breach of fiduciary duty. One theory, like conspiracy to breach a fiduciary duty, requires that the aider and abettor owe a fiduciary duty to the victim and requires only that the aider and abettor provide substantial assistance to the person breaching his or her fiduciary duty The second theory for imposing liability for aiding and abetting a breach of fiduciary duty arises when the aider and abettor commits an independent tort. This occurs when the aider and abettor makes a conscious decision to participate in tortious activity for the purpose of assisting another in performing a wrongful act." (*American Master Lease LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1477 [cleaned up].)

As to the first theory, Cross-Complainant has not alleged that Cross-Defendant Kooken owed a fiduciary duty to Legarte.

As to the second theory, Cross-Complainant must allege that Kooken "had actual knowledge of the specific primary wrong the [Cross-Defendant] substantially assisted." (*Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1145.) Here, the Cross-Complaint alleges that Kooken "had actual knowledge that Alviz and Alfonso were the majority shareholders in Macrobuild and owed fiduciary duties to GIL" that Kooken "actively encouraged the breach of those fiduciary duties ... provided substantial assistance and encouragement to Alviz and Alfonso in their wrongful decision to expel GIL from Macrobuild and convert Macrobuild funds for their own use." (XC at ¶ 16.)

Cross-Defendant also argues that merely alleging Legarte's "expulsion" from Macrobuild is insufficient to allege breach of fiduciary duty on the part of Alviz and Alfonso. (Demurrer at 6:11-13.) In opposition, Cross-Complainant notes that the Cross-Complaint also alleges that in addition to expelling him from Macrobuild, Alviz and Alfonso diverted funds, misappropriated opportunities, and failed to pay him. (See XC at ¶¶ 9-12.)

Cross-Complaint has alleged facts sufficient to state a cause of action for aiding and abetting breach of fiduciary duty. The Demurrer to this cause of action is **overruled**.

(2) tort of another

Cross-Defendant demurs to Cross-Complainant's cause of action tort of another on the grounds that "tort of another" is not a standalone cause of action and the Cross-Complaint fails to allege any actionable tort committed by Kooken.

"The tort of another doctrine holds that a person who through the tort of another has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred." (*Mega RV Corp. v. HWH Corp.* (2014) 225 Cal. App. 4th 1318, 1337.) Because the doctrine applies to economic damages suffered because of an alleged tort, "nearly all of the cases which have applied the [tort of another] doctrine involve a clear violation of a traditional tort duty between the tortfeasor who is required to pay the attorney fees and the person

seeking compensation for those fees.” (*Id.* at 1339 [internal quotation marks omitted].) In other words, if as a result of a tort the victim must pay an attorney to sue someone other than the tortfeasor, the cost of that action is part of the injury and can be part of the damages award for the tort claim.

Here, the Cross-Complaint alleges that Kookan “encouraged Alviz and Alfonso not to repay Merchant Cash Advances that GIL had taken out on behalf of the business” and that “[a]s a result, the lender, Capital Infusion, LLC, initiated a lawsuit in January 2023 against GIL, Macrobuild, and Alfonso, seeking payment for the unpaid balance, which GIL had to spend money defending.” (XC at ¶ 12.) Cross-Complainant argues in opposition to the demurrer that the Cross-Complaint alleges the elements of the tort intentional interference with contractual relations and support his cause of action for tort of another.

“The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (*Pac. Gas & Elec. Co. v. Bear Stearns & Co.* (1990) 50 Cal. 3d 1118, 1126.) The Cross-Complaint alleges that Kookan “stopped repayment of the Merchant Cash Advances that GIL had taken out on behalf of the business and personally guaranteed” (XC at ¶ 25); that “[a]s a direct result of the stopping repayment, a collection action was filed against GIL by Capital Infusion (Case No. 23VECV00143), which he was forced to defend against and ultimately settle.” (XC at ¶ 26.)

Cross-Complainant has sufficiently pled an underlying tort which caused him to incur damages. Cross-Defendant has not cited any authority, and the Court is not aware of any, which also requires Cross-Complainant to separately plead the tort which he relies on for his tort of another claim.

The Demurrer to this cause of action is **overruled**.

4. 9:00 AM CASE NUMBER: C23-00841

CASE NAME: ANGELITO ALVIZ VS. VIRGILIO LEGARTE

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS, SET 1
FILED BY: ALVIZ, ANGELITO**

TENTATIVE RULING:

Continued to February 26, 2026, 9:00 a.m. by stipulation and order entered December 5, 225

5. 9:00 AM CASE NUMBER: C24-00016

CASE NAME: NICHON ROBERSON VS. BL HOMES, INC

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PLTF ROSALYN ENFIELD
FILED BY:**

TENTATIVE RULING:

Denied, without prejudice. Fails to comply with CRC 3.1362(c), which requires that counsel's declaration “state in general terms and without compromising the confidentiality of the attorney-client relationship” why a motion is necessary. If counsel notifies the Court that they wish to appear, they may appear and request a continuance to submit a supplemental declaration.